



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

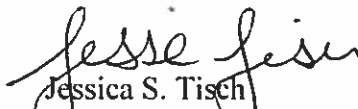
Re: PODS Case No. C-035877 regarding Police Officer Anthony Gitto, Tax No. 967523

Date: August 25, 2026

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Police Officer Gitto strip-searched an individual without sufficient legal authority and made an inaccurate statement to the CCRB. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, the Charges and Specifications in this matter will be dismissed and Police Officer Gitto will receive a Schedule "B" Command Discipline with the forfeiture of ten (10) vacation days, as negotiated by CCRB.


Jessica S. Tisch
Police Commissioner



ZOHRAN K. MAMDANI
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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SHERENE CRAWFORD
INTERIM CHAIR

May 6, 2026

The Honorable Jessica Tisch
Police Commissioner
New York City Police
Department One Police Plaza
New York, NY 10038

VIA EMAIL

Re: CCRB v. PO Anthony Gitto, Tax #967523 (CCRB #202407460)

Commissioner Tisch:

I write to you regarding the plea in the above-referenced case.

The CCRB offered Officer Gitto a disposition of a Command Discipline Schedule "B" with a forfeiture of ten (10) vacation days in this matter. This is a downward deviation from the NYPD's Disciplinary Matrix for the charge of an Unauthorized Strip Search. The CCRB offered this disposition for the following reasons:

1. Officer Gitto agreed to take responsibility for his misconduct;
2. Officer Gitto's role as a subordinate; and
3. Officer Gitto's lack of disciplinary history

Respectfully submitted,

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor
Civilian Complaint Review Board